When Accountability Stops Being Reciprocal

Moral authority and the permanent defendant

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A request for evidence can be treated as a reason to distrust the person asking for it. If an objection is then interpreted as defensiveness, the person has no clear way to challenge the original judgment. This essay examines how that pattern can enter institutional decisions.

The practical test is whether a judgment's grounds can be examined and its errors corrected. A decision may survive scrutiny and remain adverse. A process fails this test when it excludes the responses that could expose a mistake.

Reciprocity does not require identical roles. A complainant, an investigator, and a decision maker properly have different responsibilities. It requires the consequential use of authority to remain answerable. Mark Bovens's account of institutional accountability makes the relationship concrete: an actor explains conduct to a forum able to question and judge, with possible consequences for the actor. That structure also makes it possible to ask who examines the forum's own exercise of power.[1]

This essay examines pressures against scrutiny and failures of accountability in selected university and progressive-organizing settings, where equality and open inquiry are among the commitments invoked to justify authority. The criticism follows from those commitments themselves. Individual cases can reveal a mechanism; surveys can illuminate the conditions around it. Neither establishes a uniform culture or a uniquely progressive human weakness. The question throughout is what happens when someone challenges a consequential judgment.

How an accusation protects itself

Questioning a claim and making a claim about its author are different intellectual acts. Someone can reasonably remain unconvinced without preparing a counter-essay. But an assertion that the author is dishonest, prejudiced, manipulative, or authoritarian introduces an additional proposition. That proposition needs support of its own.

The problem begins when these acts are treated as interchangeable. Disagreement is taken to disclose a motive; the motive discredits the disagreement; resistance to that description then confirms it. The accusation supplies both the verdict and the rules for interpreting the defense. Ralph H. Johnson's principle of vulnerability identifies the relevant intellectual obligation: an argument must remain exposed to legitimate criticism.[2] Rejecting an objection after considering it differs from treating the objection's existence as grounds for disqualifying the objector.

After David Shor's expulsion from the Progressphiles professional network, correspondence reproduced by Jonathan Chait shows requests for evidence about alleged harassment being criticized as

insensitive. One participant recommended private objections to moderators.[3] The episode illustrates a moral cost attached to public scrutiny, without establishing that confidential review was unavailable.

A denial is not automatically persuasive. Neither is it automatically evidence of guilt. Testimony, context, and patterns of conduct can all support an accusation. The question is what they establish beyond the circular inference that resistance proves the charge, and whether relevant contrary evidence can change the conclusion. A judgment about harmful conduct may be warranted without proof of malicious intent; it still needs a defensible account of the conduct and the standard being applied.

The obligation to answer also needs a scope. A person who limits how much explanatory work they will undertake may be accused of trying to dictate what the other person believes. In ordinary conversation, deciding when to stop speaking does not decide what anyone else must believe. Both parties can remain unconvinced. A pause alone should not manufacture a character verdict. Formal responsibilities are different: an employee or officeholder may owe specified answers within a legitimate process. But even that process needs a defined question and an endpoint. An indefinite obligation to establish one's moral acceptability leaves a person permanently on the defensive without saying what would discharge the obligation.

When an institution gives an interpretation official standing, the consequences can extend to employment, participation, or reputation. The quality of the procedure then matters independently of the sincerity of those involved.

When an institution adopts the judgment

At Hamline University in October 2022, art-history instructor Erika López Prater showed historical Islamic depictions of Muhammad after giving advance warnings. An informal offer of spring teaching was withdrawn, and an administrator subsequently described the classroom display as Islamophobic. An inquiry by the American Association of University Professors found failures of investigation and opportunity to respond, and no legitimate academic rationale supplied for the nonrenewal. It regarded the connection between the classroom incident and the withdrawal as strongly supported by the circumstances, rather than conclusively established.[4]

The report also documents what happened when religion professor Mark Berkson questioned the governing interpretation. He asked how an injunction to trust Muslims on Islamophobia should apply when Muslim scholars themselves disagreed. His intervention was curtailed. An administrator later condemned a faculty member's "repugnant and repulsive need to be 'right,'" referring, the inquiry concluded, to Berkson.[4]

The dispute required a reason for classifying this teaching as Islamophobic despite disagreement among Muslim scholars. Reproaching Berkson for wanting to be right did not provide that reason; it made the attempt to examine the classification itself suspect. Respect for a group cannot choose among its members' conflicting interpretations. An institution must explain which interpretation it adopts and why it warrants the proposed consequence.

In January 2023, Hamline retracted the charge of Islamophobia. That correction matters, as does its timing.[4] The relevant distinction is between a usable opportunity to challenge a judgment before its consequences harden and a correction secured after a public controversy. An institution's capacity to recover from error deserves recognition; it does not make the earlier exercise of authority adequate.

What the institution loses

Some of the clearest accounts of the damage come from progressive organizers themselves. In his 2022 essay "Building Resilient Organizations," Maurice Mitchell, then national director of the Working Families Party, describes strategic differences becoming judgments of corruption, cowardice, or inadequate commitment. He criticizes using identity and prestigious moral terminology to shield positions from examination. His concern is the capacity of progressive organizations to carry out their purposes: internal conflict can absorb the attention and discipline needed for effective collective action.[5]

Tema Okun warns against weaponizing her own "White Supremacy Culture" framework. She reproduces a facilitator's account of communications work brought to a halt after staff identified editing as white supremacist, and rejects using the framework to target individuals. Her warning distinguishes using a framework to understand a problem from using it to establish another person's inadequacy.[6]

LeeAnn Hall, Libero Della Piana, and Daniel Martinez HoSang describe a white staff member accusing a Native leader of anti-Blackness for discussing tribal sovereignty without discussing Black people. Their account shows how a personal accusation can displace the substantive question of how commitments to tribal sovereignty and opposition to anti-Blackness should inform the organization's work.[7] That question becomes especially pressing when several communities have claims at stake.

Authority to describe an experience, authority to interpret its causes, and authority to impose a consequence are distinct. People reporting harm may possess knowledge that others have ignored. Taking that knowledge seriously requires listening and investigation; it does not eliminate the need to assess competing explanations or justify a remedy. Otherwise, the institution risks privileging the account most readily recognized by its decision makers while overlooking other affected people.

Applying a framework still requires distinguishing two possibilities: an objection exposes a mistake, or the objection fails. If both are interpreted as further evidence against the objector, the procedure returns the same verdict either way. It can no longer distinguish a supported complaint from a mistaken one. That loss can injure people the institution intends to protect as well as those it judges.

The intellectual cost is specific. Instead of asking which strategy works, what a proposal implies, or whether an argument is valid, participants must first establish that they are the kind of people entitled to ask. Moral standing becomes a prerequisite for substantive participation, while its criteria remain under someone else's control.

Why the pattern can persist

Moral conviction can make scrutiny seem less necessary precisely when it matters most. In experimental scenarios studied by Linda Skitka and David Houston, beliefs about a defendant's guilt or innocence could dominate judgments of fairness, diminishing the importance of how the outcome was reached. The scenarios supplied information about guilt, whereas real institutions must often establish disputed facts themselves.[8] The danger arises when decision makers treat their confidence as sufficient reason to dispense with safeguards that could test it.

Accountability itself can reinforce this problem. An experiment by Philip Tetlock, Linda Skitka, and Richard Boettger found that anticipated scrutiny could encourage more complex consideration before commitment when an audience's views were unknown. When those views were known, it could encourage alignment; after commitment, it could encourage defensive justification.[9] A subsequent review by Jennifer Lerner and Tetlock explains why the effects of accountability depend on how it is arranged.[10] Asking an official to examine evidence before deciding differs from asking the same official to defend a public verdict. An institution can be responsive to an audience demanding action while remaining unanswerable to the person affected.

Research on employee voice and silence supplies broader evidence that power, anticipated reactions, and perceived openness affect whether concerns are expressed.[11] A plausible reinforcing process follows. A charged accusation creates an immediate reputational problem. Examining its context takes time and may attract criticism of its own. Distancing the institution from the accused can offer a quicker visible resolution. Observers learn which questions are expensive to raise; their silence may then be mistaken for agreement. A minority able to impose costs can deter a larger number who privately disagree. This sequence is a hypothesis about institutional incentives, not an established explanation of the cases discussed here.

Comparable individual dispositions can produce unequal institutional effects when some participants have greater power to turn their interpretations into consequences. The prevailing outlook may then pass as a neutral baseline whose assumptions need no defense. Dissenters, including insiders who contest how shared commitments are applied, must defend both their position and their standing to question that baseline. This need not reflect a uniquely intolerant disposition. Honeycutt and Freberg's faculty survey found greater hostility reported by conservatives alongside similar liberal and conservative stated willingness to disadvantage ideological opponents.[12] Waytz, Young, and Ginges found American partisans attributing more benevolent motives to their own side's involvement in conflict than to the other's.[13]

Research on political expression supplies further context. A UW–Madison survey experiment found less favorable hypothetical hiring responses to particular conservative than liberal statements; content and perceived professional relevance remain possible explanations.[14] FIRE's faculty surveys found greater reported concealment among conservatives, although low voluntary response limits generalization.[15,16] In a different setting, a correspondence experiment found no statistically significant partisan difference in replies to prospective graduate students mentioning work for Obama or McCain.[17] These studies do not directly test whether consequential judgments can be challenged or corrected.

The pressure need not make dissent literally unsayable. In his proposed preface to Animal Farm, "The Freedom of the Press," Orwell examined voluntary censorship and prevailing orthodoxy within a society that retained substantial intellectual freedom.[18] The relevant question is what happens to people who use the freedom formally available to them.

Making judgment answerable

An organization may legitimately require commitment to its mission; a university may assess professional competence and conduct. Those judgments need an intelligible connection between the standard, the relevant evidence, and the decision. The institution must also be able to defend its purposes and standards; explaining how an unjust rule was applied cannot make the rule just. Unequal outcomes do not themselves establish unfairness. A defective process does not establish the accused person's innocence, just as a correct conclusion does not excuse every method used to enforce it. The authority must explain and defend its exercise of power.

Stanford Law School's response to the disruption of Judge Kyle Duncan's 2023 appearance offers an example of reasoned institutional restraint. Dean Jenny Martinez explained why administrators charged with enforcing the disruption policy should not use that role to question whether an invited speaker was worth hearing. She also explained the decision against individual student discipline in those circumstances, citing difficulty distinguishing protected protest from punishable disruption and mixed signals from administrators. Her memorandum defended lawful protest and announced mandatory educational programming on free speech and professional norms, while expressly allowing disagreement with its content and her own reasoning.[19]

The memorandum's strength lies in applying constraints across the conflict. Protecting the speaker did not require indiscriminate punishment of protesters. Correcting administrative failure did not require pretending that every participant had acted well. It made the institution's reasoning available for scrutiny, including its account of its own responsibilities and failures.

Some of the same discipline appears in Mitchell's constructive proposals: clear decision-making structures, leadership accountable to organizational purpose, and collective bargaining that clarifies responsibilities and provides a shared basis for resolving disputes.[5] Formal authority can be easier to question when people know where decisions are made and how they can be challenged. Leaving authority unnamed does not prevent its exercise.

Several requirements follow. State the conduct at issue and the applicable standard. Separate established facts from disputed interpretations, including inferences about motive. Explain what evidence or reasoning could change the conclusion. Give the affected person a meaningful opportunity to respond and provide review by someone able to reconsider the decision without having to defend their own prior verdict. Match any sanction to the conduct actually established. The explanation and the safeguards should be proportionate to the consequences. A private disagreement cannot require the machinery appropriate to a decision affecting someone's livelihood.

These protections must work for complainants as well. People reporting abuse may face disbelief, retaliation, and exhausting demands to repeat their account. Evidence can be examined through a fair confidential process without requiring a public encounter between complainant and accused. Urgent protective measures can be provisional, with a specified basis and prompt review, rather

than presented as final findings. A meaningful process must be usable by people without the time, status, or resources to force a public controversy.

Review also needs an endpoint. A reasoned adverse decision may stand after a fair opportunity to contest it; new evidence can justify reopening it. Where the institution finds that it made a consequential error, correction must address what the error did. A quiet amendment may be inadequate after a public accusation. The responsibility to account for a judgment includes repairing its avoidable effects as far as possible.

Criticism of the institution is subject to the same requirements. It must identify the decision at issue, the grounds for finding fault, and what would count as an adequate correction. An allegation of institutional unfairness cannot exempt its author from giving reasons.

Sources and notes

1. Mark Bovens. "Analysing and Assessing Accountability: A Conceptual Framework." European Law Journal 13(4), 2007, pp. 447–468. See pp. 450–452 for the actor–forum relationship and p. 460 for forms of accountability. The framework accommodates hierarchical roles; the demand that consequential judgments remain reviewable is the argument developed here. ↩

2. Ralph H. Johnson. "The Principle of Vulnerability." Informal Logic 17(2), 1995, pp. 259–269. Especially pp. 260–262 on legitimate criticism and attempts to insulate an argument. This norm does not give every interlocutor an unlimited claim on an arguer's time. ↩

3. Jonathan Chait. "An Elite Progressive LISTSERV Melts Down Over a Bogus Racism Charge." New York / Intelligencer, June 23, 2020. Selected correspondence reported by a columnist; see the evidence exchange. The separate employment dispute remains unresolved here. ↩

4. American Association of University Professors. "Academic Freedom and Tenure: Hamline University (Minnesota)." May 2023; 2023 Bulletin, pp. 62–80. See §§III and IV.A–B for chronology and procedure; §IV.E, especially pp. 76–77, for Berkson; §IV.F for correction. A professional inquiry based on interviews, documents, and video, not a judicial finding. ↩ ↩ ↩

5. Maurice Mitchell. "Building Resilient Organizations." The Forge, November 29, 2022. See "Neoliberal Identity," "Maximalism," "Anti-Leadership Attitudes," and "Cherry-Picking Arguments"; for constructive proposals, "From Problem to Solution," especially "Structural." An intervention in progressive organizing, not a prevalence survey. ↩ ↩

6. Tema Okun. "White Supremacy Culture Characteristics." White Supremacy Culture website, first published 2021; site footer last updated February 2025. Accessed October 19, 2026. See "(please avoid) weaponizing this tool," including the facilitator's account of stalled editing. The episode is reported experience, not an independently investigated case. The footer date does not establish when that individual passage was written. ↩

7. Daniel Martinez HoSang, LeeAnn Hall, and Libero Della Piana. "To Tackle Racial Justice, Organizing Must Change." The Forge, January 4, 2022. See "Where We Get Tripped Up," the second example and following discussion. The organizations are unnamed; the episode is the authors' organizing testimony, not an independently adjudicated case. ↩

8. Linda J. Skitka and David A. Houston. "When Due Process Is of No Consequence: Moral Mandates and Presumed Defendant Guilt or Innocence." Social Justice Research 14(3), 2001, pp. 305–326. Especially pp. 312–317 and 320–324. The experiments used hypothetical criminal cases and manipulated information about guilt or innocence. Their relevance is to fairness judgments; they did not measure partisan differences or institutional misconduct. ↩

9. Philip E. Tetlock, Linda J. Skitka, and Richard Boettger. "Social and Cognitive Strategies for Coping With Accountability: Conformity, Complexity, and Bolstering." Journal of Personality and Social Psychology 57(4), 1989, pp. 632–640. One experiment with several conditions; see pp. 635–638. Its measures concern expressed attitudes and thought complexity, not the justice of institutional outcomes. ↩

10. Jennifer S. Lerner and Philip E. Tetlock. "Accounting for the Effects of Accountability." Psychological Bulletin 125(2), 1999, pp. 255–275. Pp. 256–259 examine audience expectations, prior commitment, legitimacy, and process accountability. Pp. 263–265 explain why even favorable arrangements do not uniformly improve judgment. ↩

11. Elizabeth Wolfe Morrison. "Employee Voice and Silence: Taking Stock a Decade Later." Annual Review of Organizational Psychology and Organizational Behavior 10, 2023, pp. 79–107. See pp. 83–89

on safety, efficacy, leadership, and colleagues; pp. 94–99 discuss evidence limits and further research. The review does not establish the motives behind silence in a particular institution. ↩

12. Nathan Honeycutt and Laura Freberg. "The Liberal and Conservative Experience Across Academic Disciplines: An Extension of Inbar and Lammers." Social Psychological and Personality Science 8(2), 2017, pp. 115–123. Methods, p. 116; findings and discussion, pp. 118–121. The 618 responses represented a 26.4 percent return rate. Reported experiences and stated willingness to discriminate do not establish actual institutional decisions or their causes. ↩

13. Adam Waytz, Liane L. Young, and Jeremy Ginges. "Motive Attribution Asymmetry for Love vs. Hate Drives Intractable Conflict." Proceedings of the National Academy of Sciences 111(44), 2014, pp. 15687–15692. See the American partisan studies and the introduction's definition of bias as a response tendency rather than necessarily an error. ↩

14. Alex Tahk. "Faculty Perspectives on Academic Freedom, Free Expression and Campus Climate at the University of Wisconsin–Madison." Tommy G. Thompson Center on Public Leadership, March 8, 2026. See "Hiring and Political Viewpoints" and the methodology appendix. There were 633 completions from 2,388 invitations (26.5 percent). Conservative/liberal percentages reporting a negative hiring effect were immigration 45/7, abortion 29/3, race-conscious admissions 26/12, and transgender sports participation 22/11. Statement versions were randomized by topic; a majority reported no hiring effect in each condition. The design does not establish equal perceived extremity or actual hiring effects. ↩

15. Nathan Honeycutt. "Silence in the Classroom: The 2024 FIRE Faculty Survey Report." Foundation for Individual Rights and Expression, December 2024. The survey included 6,269 respondents at 55 selected institutions, with a 5.57 percent response rate. Fifty-five percent of conservative respondents and 17 percent of liberals reported concealing political views at least occasionally to keep their jobs. See the introduction and "Methodology: Sample." Institutional selection and voluntary response limit population inference. ↩

16. Nathan Honeycutt. "Free Expression in a Climate of Self-Censorship: A National Survey of American Law Faculty." Foundation for Individual Rights and Expression, 2026. Fielded January 21–March 10, 2026: 1,959 responses from 192 schools, a 6.01 percent response rate. Reported political concealment at least occasionally to keep one's job was 52 percent among conservatives and 17 percent among liberals. See "Two different law schools" and "Methodology: Sample." These are self-reports from respondents, not a population census. ↩

17. Ethan Fosse, Neil Gross, and Joseph Ma. "Political Bias in the Graduate School Admissions Process: A Field Experiment." In Professors and Their Politics, edited by Neil Gross and Solon Simmons, Johns Hopkins University Press, 2014, pp. 109–134. Design, pp. 116–119; results, pp. 124–129. The 2010 experiment contacted 318 graduate-program directors in five fields. Obama/McCain response rates were 73/70 percent. Nondetection of a significant difference is not demonstrated equivalence; initial correspondence is not an admissions or hiring decision. ↩

18. George Orwell. "The Freedom of the Press." Proposed preface to Animal Farm; first published in the Times Literary Supplement, September 15, 1972. Reproduced by the Orwell Foundation. See the paragraphs beginning "Any fairminded person" and "Unpopular ideas can be silenced." A historical argument about voluntary censorship, used here as an illuminating comparison rather than evidence of contemporary prevalence. ↩

19. Jenny S. Martinez. "Next Steps on Protests and Free Speech." Stanford Law School memorandum, March 22, 2023. P. 5 addresses administrators' responsibilities; pp. 8–9 explain the decision against individual student discipline; p. 9 announces mandatory programming while preserving disagreement. The memorandum establishes announced reasoning and action, not a measured record of lasting institutional reform. ↩